IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/560,041
Filing Date:	March 7, 2026
Confirmation Number:	9152
Art Unit / Examiner:	TC 2100 / ADD2AFC
Customer Number:	226458
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Title of Invention:	APPARATUS AND METHOD FOR PHYSICAL TRANSMISSION OF SPATIALLY-ENCODED OPTICAL DATA

APPLICANT'S RESPONSE TO NOTICE TO FILE MISSING PARTS (37 CFR §§ 1.53(b), 1.121, 1.125; MPEP § 608.01(q))

(TIMELY SUBMISSION WITHIN INITIAL TWO-MONTH REPLY PERIOD TO OCTOBER 13, 2026,
CONDITIONAL REQUEST FOR SIX-MONTH SUSPENSION OF ACTION UNDER 37 CFR § 1.103(a)
WITH CONCURRENT REMITTANCE OF $60.00 PROCESSING FEE,
SUBSTITUTE SPECIFICATION WITH NO NEW MATTER CERTIFICATION,
MARKED-UP COPY UNDER 37 CFR § 1.125(c),
REPLACEMENT CLAIMS, REPLACEMENT ABSTRACT, FORMAL STANDALONE DRAWINGS,
PERFECTED AIA INVENTOR DECLARATION,
AND REQUEST FOR DEPOSIT ALLOCATION UNDER 37 CFR § 1.25(b))

Mail Stop Missing Parts
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In responsive reply to the *Notice to File Missing Parts* mailed August 13, 2026, the pro se Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this comprehensive formalities response.

Statutory Timeliness & Federal Holiday Rollover (35 U.S.C. § 21 & 37 CFR § 1.7(a)): Applicant respectfully notes that the two-month statutory reply period set in the Notice to File

Missing Parts mailed August 13, 2026 expires on October 13, 2026 (as October 12, 2026 is Columbus Day, an official Federal Holiday, rolling forward to Tuesday, October 13, 2026 pursuant to 35 U.S.C. § 21 and 37 CFR § 1.7(a)). This response is filed within the two-month period and is fully timely without requiring an extension of time.

I. REAFFIRMATION OF SMALL ENTITY STATUS (37 CFR § 1.27)

Applicant hereby formally reaffirms entitlement to **Small Entity status** under 37 CFR § 1.27 and 35 U.S.C. § 123, as verified on the docket on October 10, 2026. All statutory fees are computed strictly under the Small Entity fee schedule.

II. CURING OF FORMALITY DEFECTS & COMPLETE ITEMIZED SUBMISSIONS

To pre-emptively cure every latent technical and formal informality before the application is assigned to an examining art unit, including removing embedded diagrams on pages 7–9 of the specification and supplying formal standalone drawings, Applicant concurrently submits the following perfected instruments in this single, unified 9-document electronic envelope:

1. **Formal Certification of No New Matter (37 CFR § 1.125(b) & MPEP § 608.01(q)):** Applicant hereby formally certifies pursuant to 37 CFR § 1.125(b) and MPEP § 608.01(q) that the accompanying Substitute Specification contains **NO NEW MATTER**. The changes incorporated into the Substitute Specification relative to the as-filed specification are strictly limited to the excision of embedded graphic images (relocated to formal standalone drawing sheets under 37 CFR § 1.84), excision of embedded abstract and claims (relocated to standalone sheets under 37 CFR §§ 1.72(b), 1.75(h)), enforcement of strict double line spacing under 37 CFR § 1.52(b)(2)(i), and uniform flush-left paragraph formatting.

2. **Standalone Substitute Specification (37 CFR § 1.125(c)) [Patent Center Description: "Specification"]:**
   Applicant submits both a **Clean Copy of the Substitute Specification** and the mandatory **Marked-Up Copy** (showing all excisions in strike-through under 37 CFR § 1.121(b)(1)(iii)), ensuring the specification contains purely technical disclosure text without extraneous metadata or procedural blocks, curing the defect under MPEP Form Paragraph 6.28.02.

3. **Standalone Formal Drawing Sheets (37 CFR § 1.84) [Patent Center Description: "Drawings - only black and white line drawings"]:**
   Applicant submits standalone formal drawing sheets containing **FIG. 1, FIG. 2, and FIG. 3** across Sheets 1–3. Each sheet bears the mandatory phrase **"Replacement Sheet"** in the top margin pursuant to 37 CFR § 1.121(d).

4. **Perfected Universal AIA Inventor Declaration (35 U.S.C. § 115, 37 CFR § 1.63) [Patent Center Description: "Oath or Declaration filed"]:**
   Applicant submits an executed, perfected AIA Inventor Declaration satisfying all statutory requirements under 35 U.S.C. § 115, 37 CFR § 1.63, and MPEP § 605, including the mandatory authorization averment, complete legal domicile, and criminal liability warning under 18 U.S.C. § 1001.

5. **Standalone Replacement Claims (37 CFR § 1.75(h)) [Patent Center Description: "Claims"]:**
   Applicant submits standalone Replacement Claims 1–10, commencing on a separate sheet in strict double spacing, under the pure statutory heading "CLAIMS", fully preserving the nested itemized sub-clause structure on Claims 1, 4, 5, 6, and 9.

6. **Standalone Replacement Abstract (37 CFR § 1.72(b)) [Patent Center Description: "Abstract"]:**
   Applicant submits a standalone Replacement Abstract, commencing on a separate sheet in strict double spacing, under the pure statutory heading "ABSTRACT OF THE DISCLOSURE".

7. **Conditional Petition for Extension of Time (37 CFR § 1.136(a)) [Patent Center Description: "Extension of Time"]:**
   Applicant submits a protective Conditional Petition for Extension of Time under 37 CFR § 1.136(a), confirming timeliness within the initial two-month period, and conditionally requesting a one-month extension via deposit credit allocation if deemed necessary by the Office.

8. **Request for Six-Month Suspension (37 CFR § 1.103(a)) [Patent Center Description: "Letter Requesting Suspension of Action"]:**
   Applicant submits a Conditional Request for Suspension of Action under 37 CFR § 1.103(a), accompanied by concurrent payment of the $60.00 statutory fee (Fee Code 2830), requesting that prosecution be suspended for six (6) months upon completion of pre-examination processing.

III. STATUTORY FEE RECONCILIATION, REQUEST FOR DEPOSIT ALLOCATION (37 CFR § 1.25(b)), AND MACRO PORTFOLIO EQUITY

A. Remittance of Statutory Suspension Processing Fee

Applicant remits **$60.00** concurrently herewith via Patent Center point-of-sale checkout for the **Suspension Processing Fee** under 37 CFR § 1.17(i) (Fee Code 2830, Small Entity), fully satisfying all fee requirements for the accompanying Request for Suspension.

B. Respectful Request for Allocation of Unapplied Deposit Funds (37 CFR § 1.25(b) & MPEP § 509)

Official Office records (specifically the Notice to File Missing Parts mailed August 13, 2026) confirm that the Office of Finance currently holds **$450.00 in unapplied funds on deposit** under this application serial number.

Pursuant to 37 CFR § 1.22(b) and MPEP § 509, Applicant respectfully requests that the Office allocate this existing **$450.00 unapplied deposit credit** directly toward the statutory pre-examination base fees under 37 CFR § 1.16.

C. Request for Administrative Notice of Fee Deficiency (37 CFR § 1.53(f)) & Macro Portfolio Equity

For any remaining pre-examination fee balances assessed under Small Entity rates, Applicant respectfully requests that the Office assess the balance via a formal **Notice of Fee Deficiency** pursuant to 37 CFR § 1.53(f) and MPEP § 506.

Applicant respectfully notes the equitable context of the broader portfolio: across Applicant's 102 patent applications, the USPTO Office of Finance currently holds over **$32,758.00** in unapplied pro se deposit funds detained by the agency without interest. This macro capital reserve provides substantial equitable security while pre-examination formalities are perfected and deficiency notices are processed.

IV. CONCLUSION

All formal and technical instruments having been fully perfected herein, statutory timeliness secured through October 13, 2026 within the initial two-month period, and the suspension fee remitted,

Applicant respectfully requests that the Office of Patent Application Processing (OPAP) accept this response as timely and complete, issue an administrative Notice of Fee Deficiency under 37 CFR § 1.53(f) for any remaining base fee balances, and advance Application No. 19/560,041 to an examining art unit.

Respectfully submitted,

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Date: October 12, 2026